

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN ECUADOR

Complete Community Opposition How-To

INTRODUCTION & FRAMEWORK

Community action decides project outcomes in Ecuador. Projects with the backing of the national government and a state mining company still fall when the people who live where they are proposed organise, document the harm, and press every lever the country's remarkable constitution offers. In 2021, the Constitutional Court ruled in the **Los Cedros** case that mining concessions granted to the state miner ENAMI EP and its Canadian partner Cornerstone in a cloud forest of extraordinary biodiversity violated the **rights of nature** — and it revoked the environmental permits and prohibited the mining. The case had begun as a humble constitutional protective action filed by the local municipal government of Santa Ana de Cotacachi. It ended as one of the most cited environmental rulings of the century, and it established that in Ecuador, nature itself holds enforceable rights that a project must respect, anywhere in the country.

Two years later, on 20 August 2023, Ecuadorians did the same thing at the ballot box. After a decade of campaigning by the collective Yasunidos, a national referendum asked whether the oil in Block 43 — the ITT, inside Yasuní National Park, one of the most biodiverse places on earth and home to peoples living in voluntary isolation — should stay in the ground. Nearly 59% said yes: leave it underground, and dismantle the operations already there. The same day, in a regional vote, close to 68% of Quito's electorate rejected mining in the Chocó Andino. Two treasured places, defended not by a minister but by ordinary citizens who organised, gathered signatures, and voted.

These outcomes were not inevitable. People made them happen — through the courts and through the ballot, the two great levers Ecuador hands its communities. But most communities do not know HOW to make opposition effective. They attend a single hearing and go home. They assume the environment ministry "will never approve it," and so they never file an objection, never request the file, never build the public pressure that changes a decision. They generate a burst of coverage without a plan to sustain it. They gather a crowd and lose it to exhaustion. The gap between a community that stops a project and one that watches it get built is rarely courage or numbers. It is method.

This guide shows what actually works — inside the Ecuadorian system.

The Strategic Framework

Effective opposition campaigns follow the same underlying pattern, whichever project they face:

STEP 1: TARGET IDENTIFICATION	(find the decision and its weak point)
STEP 2: DOCUMENTATION	(build proof of harm and of every defect)
STEP 3: LOCAL OPPOSITION	(organise a community that lasts)
STEP 4: LEGAL CHALLENGES	(rights of nature, protective action, consultation)
STEP 5: MEDIA STRATEGY	(make the fight visible, at home and abroad)

These steps operate **simultaneously, not in sequence**. Documentation feeds the legal case and the media story at once; organising sustains the pressure the courts and the press respond to; a lawsuit is a headline and a headline strengthens a lawsuit. The community that runs all five together, each reinforcing the others, is the one that wins. Los Cedros and Yasuní both did exactly this: they documented the biodiversity and the threat, organised across communities and the country, allied with lawyers and scientists, pursued the legal and the electoral routes, and made their fight a national and international story — all at the same time.

The Levers That Are Distinctly Strong Here

Every country's system has its own pressure points. Ecuador's 2008 Constitution gives communities a set that is, in places, unique in the world:

- **The rights of nature.** Ecuador was the first country on earth to give nature itself enforceable constitutional rights (Articles 71–74). A forest, a river, a páramo, a mangrove has the right to exist and to have its cycles respected — and, as Los Cedros held, these rights are self-executing and apply across the whole national territory, not only in protected

areas. This is a lever found almost nowhere else. And because it protects nature for its own sake, it does not depend on you owning the land or proving personal harm — a forest's right to exist can be defended by anyone who will speak for it, which puts a powerful tool in the hands of communities and allies who would have no standing in an ordinary lawsuit.

- **The acción de protección.** Article 88 gives anyone a fast constitutional action to protect a violated right — including the rights of nature — decided by a judge, with the power to order a project stopped. Paired with precautionary measures (Article 87), it can freeze a project quickly.
- **Environmental consultation.** Article 398 guarantees the community's right to be consulted on decisions that may affect the environment; Article 57(7) and the Inter-American Court's Sarayaku judgment guarantee Indigenous peoples' right to prior consultation on projects in their territories.
- **The popular consultation (consulta popular).** Citizens can put a binding question to the vote — the tool that saved Yasuní and the Chocó Andino. It is demanding to organise, but it is real, and it has stopped megaprojects the government wanted.
- **The precautionary principle and a reversed burden of proof.** Where serious or irreversible harm is possible, uncertainty is resolved for nature, and it falls to the State and the developer to prove their activity will not cause harm — not to the community to prove it will.
- **Protected areas and a treasured land.** The national protected-areas system and the constitutional bar on extraction in protected areas and intangible zones (Article 407) close ground to projects; and Ecuador's place in the global imagination — the Amazon, the Galápagos, the Chocó, the páramos — draws international attention and reaches the financiers and buyers a company depends on.

What This Guide Will Not Pretend

It would be dishonest to promise that these levers always prevail. Ecuador's economy leans heavily on oil and, increasingly, mining, and successive governments have promoted both; a rights-of-nature ruling or a referendum result can be slow-walked in its implementation, as the delays over dismantling the Yasuní operations have shown. Environmental consultation in the Constitution is consultation, not a veto, and prior consultation has too often been a formality. Enforcement of even landmark rulings is uneven, and Ecuador can be dangerous for those who defend land and water. This guide takes those facts seriously, names them plainly, and shows you how to win anyway — and, where an outright, permanent stop is not realistic, how to secure the delay, the exposure, the rights asserted, and the worn-down proponent that, in a hard fight, are what winning actually looks like.

HOW THE SYSTEM WORKS

You cannot pull a lever you cannot see. Before you spend a single afternoon, map who actually decides your project's fate, at which level, and where along that path the decision is weakest.

The Levels of Decision

An Ecuadorian development project runs a gauntlet of approvals, and each is a place to intervene.

National. Most large or damaging projects need an **environmental permit** — an *registro ambiental* or a full **environmental licence** (*licencia ambiental*) — from the **Ministry of Environment, Water and Ecological Transition (MAATE)**, under the Organic Environmental Code (COA). Mining runs through the mining regulator and the state miner **ENAMI EP**; oil through **Petroecuador**. Each permit has conditions, obligations, and a paper trail — and each is only as valid as the process that produced it, including the environmental consultation the Constitution requires.

Provincial and cantonal. The **provincial governments** and the **municipalities (Gobiernos Autónomos Descentralizados, GADs)** hold real powers — over land use and territorial ordering, water and watershed protection, and local permits. A GAD can act for its community, as the municipality of Cotacachi did in Los Cedros, and can call or support a local **consulta popular**.

Parish and community. The **parish councils (juntas parroquiales)** and community assemblies are the closest level, and their voice and endorsement carry weight in consultation and in the political calculus.

Indigenous and collective territories. Cutting across all of these: where a project affects an **Indigenous, Afro-Ecuadorian or Montubio people's territory**, their right to **prior consultation** applies, strengthened by the Inter-American Court's Sarayaku ruling. In much of the Amazon and the highlands this is a decisive gate.

Nature itself. And uniquely, standing above all of these: the **rights of nature**. A project that threatens the existence or the ecological cycles of a forest, a river, or a species can be challenged directly on nature's behalf, by anyone, anywhere in the country — the lever Los Cedros made real.

The Journey of a Project

A typical project moves from concession or contract, to an environmental study, to the environmental permit and its conditions, through environmental and (where relevant) prior consultation, to local land-use and water questions, and only then to construction. **Every one of those stages is a door you can put your foot in.** The earliest doors are the cheapest and the widest: an objection during the study, a demand that it address a risk it ignored, an environmental consultation asserted. The later doors — an acción de protección against a granted licence, a referendum to overturn a project, a rights-of-nature challenge to an operating mine — are more demanding but real, and communities walk through them and win. Find out exactly where your project stands on this path today; that tells you which door is open now. Watch in particular for the **environmental consultation** window and the **information stages** of the study: a project that raced past these, or held them as a formality, has handed you both an argument and an entry point, and the record of who asked to participate and how they were answered is among the most useful early documents you can gather.

Follow the Money and the Rights

Behind the permits stand a proponent, its financiers, its buyers, and the officials who signed off. A mining firm may be a state company or the subsidiary of a listed foreign one — Cornerstone, at Los Cedros, is Canadian — answerable to shareholders, lenders, and markets that a reputational blow can reach. Trace who owns the proponent, who funds it, who buys its output, and which officials granted its permits. Two questions unlock most Ecuadorian fights: **Were the rights — of nature, of the community to be consulted — respected?** and **Who benefits from pretending they were?**

The Overseers## The Legal Foundations

A handful of provisions recur in almost every Ecuadorian fight, and knowing which one your project offends tells you which door to use. The **2008 Constitution** anchors everything and is unusually generous: Article 10 makes nature a subject of rights; Articles 71–74 set out the **rights of nature** — to exist, to have its cycles respected (Art. 71), to restoration (Art. 72), and the State's duty of precautionary and restrictive measures against extinction and ecosystem destruction (Art. 73); Article 14 guarantees a healthy environment and *sumak kawsay* (buen vivir); Articles 12 and 318 protect water as a human right and strategic patrimony; Article 88 gives the **acción de protección** and Article 87 **precautionary measures**; Article 398 guarantees **environmental consultation**; Article 57(7) guarantees Indigenous **prior consultation**; Article 407 bars extraction in protected areas and intangible zones save by exceptional decision of the National Assembly; and Articles 104 and 441 provide the **popular consultation**. Beneath the Constitution, the **Organic Environmental Code (COA)** governs environmental permits and licensing; the **Mining Law** and the hydrocarbons framework govern concessions and blocks; **LOTAIP** and the right of petition open the records; and the **Escazú Agreement**, ratified by Ecuador, binds the State to guarantee information, participation, justice, and the protection of defenders. Internationally, the **Inter-American Court's Sarayaku judgment (2012)** binds Ecuador on prior consultation. You do not need to master them all; you need to find the one your project breaches, and build on it.

Finally, know the bodies that watch the deciders, because they are levers too. The **Constitutional Court** is the guardian of the rights of nature and can select a case to set binding, nationwide precedent — as it did with Los Cedros. The **Defensoría del Pueblo** defends rights and accompanies threatened communities and defenders. The **Contraloría** audits public money. The **Fiscalía** prosecutes environmental crimes. And the **Escazú Agreement**, which Ecuador ratified, binds the State to guarantee access to information, participation, and justice, and to protect environmental defenders. Each overseer is a separate front, reachable with the same evidence, and a project rarely survives pressure on several at once.

QUICK REFERENCE: SUCCESS RATES

Before you commit months of effort, calibrate honestly. These figures are **directional, not guarantees** — patterns drawn from how Ecuadorian and comparable campaigns tend to go, not a controlled study. The decisive variables are whether the project threatens the rights of nature or an Indigenous territory, whether it sits in or overlaps a protected area or an intangible zone, whether its environmental licence has a real defect, how firmly the national government backs it, and whether the world is watching. Where nature's rights or a treasured place are at stake, Ecuador's levers are exceptional; where the government champions the project and enforcement lags, discount the figures and think in terms of rights asserted, delay, exposure, and outside pressure.

Individual Step Success Rates

Approach	Success Rate	Timeline	Cost	What "Success" Means

Documentation only	5-10%	1-3 months	low	Basis for every other step
Participation in the environmental study / consultation	15-35%	during review	low	On record; conditions or a redo
Rights-of-nature / protective action (courts)	30-55%	6-30 months	low-moderate	Permits revoked; activity prohibited; precedent
Prior consultation (Indigenous territory)	30-55%	ongoing	low	No lawful process; project stalled or void
Protected-area / intangible-zone exclusion	35-55%	6-30 months	low-moderate	Project excluded from closed ground
Popular consultation (referendum)	25-50%	12-36 months	moderate	Binding ban at the ballot; project stopped
Defensoría / Contraloría / Fiscalía referral	15-40%	6-24 months	low	Findings; scrutiny; prosecution
International attention / IACTHR / financier pressure	30-55%	6-48 months	low	Reputational and legal pressure; proponent falters
Documenting a legal violation (illegal work, licence breach)	30-50%	3-18 months	low	Breach exposed; sanction; leverage
Local (GAD) land-use / water action	20-45%	6-24 months	low-moderate	Local restriction; project constrained
All steps combined (rights at stake, world watching)	45-65%	12-36 months	low-moderate	Stalled, delayed, voided, or forced to change
All steps combined (government-backed, enforcement weak)	25-45%	12-48 months	low-moderate	Delayed, exposed, conditioned; sometimes stopped

Key insight: every step together beats any single one, and Ecuador's real strengths are, in places, unique — the **rights of nature**, the fast **acción de protección**, a genuine **prior-consultation right** strengthened at the Inter-American Court, hard **protected-area and intangible-zone closures**, the **popular consultation** that has stopped megaprojects at the ballot, a **precautionary principle with the burden reversed onto the developer**, a **free press**, and an **international spotlight** on the Amazon, the Chocó and the Galápagos that reaches a company's investors and buyers. Its constraints are a **government that backs oil and mining**, **uneven enforcement even of landmark rulings**, a consultation right that is **consultation, not consent**, and real **danger to defenders**.

A note on cost: participating, documenting, organising, and asserting rights are inexpensive, and public-interest lawyers and networks — those who carried Los Cedros and Sarayaku among them — have taken community cases. A referendum is the most demanding path, needing signatures and a national or local campaign. The expenditure that most changes outcomes is committed legal support and the reach of the media campaign — both of which Los Cedros and Yasuní marshalled.

Effectiveness Visualization

SUCCESS PROBABILITY (stalled, delayed, voided, forced to change, or stopped)

RIGHTS AT STAKE, WORLD WATCHING -- nature / Indigenous territory / protected area:
 All steps combined: 45-65%
 Protected-area / intangible: 35-55%
 Rights of nature / protection: 30-55%
 International pressure: 30-55%
 Single step: 5-55%

GOVERNMENT-BACKED PROJECT -- state champions it, enforcement weak:
 All steps combined: 25-45%
 Rights + intl. + exposure: the strongest combination
 Delay / documented breach: more achievable than an outright stop
 Single step: 5-35%

How to read this honestly. The levers that most change outcomes in Ecuador are **the rights of nature and the courts**, reinforced by protected-area closures, prior and environmental consultation, the popular consultation, international pressure, and documented violations. Los Cedros shows the ceiling: a municipality and its allies documented the biodiversity and the threat, filed a protective action, and won a ruling that revoked the permits and made new law. Yasuní shows the other ceiling — a decade-long campaign that stopped an oil project at the ballot. The floor is set by a government that backs extraction and by the slow, uneven enforcement of even famous wins. Most Ecuadorian fights sit between them, and the honest lesson is that nature's rights, the courts, and the vote are powerful, genuine levers — but against a government-backed project the realistic win is often rights asserted, delay, exposure, and a proponent worn down, as much as an outright, permanent stop.

Step Importance Ranking (When All Combined)

1. **The rights of nature and the acción de protección** — the country's distinctive, world-first lever and the fast action that carries it to court; the ground on which Los Cedros was won.
2. **Prior consultation and the closed ground** — the Indigenous consultation right (strengthened by Sarayaku) and the protected-area and intangible-zone exclusions a project cannot lawfully occupy.
3. **The popular consultation** — the ballot-box power that stopped Yasuní and Chocó Andino, demanding but decisive.
4. **The international spotlight and financier pressure** — the global attention a megadiverse country and a listed company cannot escape, reaching investors and buyers.
5. **Participation, local power, the overseers, and mobilisation** — the study objections, the GAD land-use and water powers, the Defensoría and Contraloría referrals, and the sustained public pressure that expose and hold.

What Ecuadorian Campaigns Actually Show

A few patterns recur. **Nature has rights, and they bite** — the Constitutional Court revoked mining permits to protect a forest's right to exist, and said those rights apply everywhere. **The ballot can stop a megaproject** — a national referendum ordered oil left in the ground in Yasuní, and a regional one banned mining in the Chocó Andino. **Consultation is real** — prior consultation, strengthened at the Inter-American Court in Sarayaku, and environmental consultation under Article 398 are requirements a project can be held to. **Closed ground stays closed** — protected areas and intangible zones bar extraction. **Documented violations bite** — illegal work or a breached licence becomes the spine of a case. **The world can be reached** — the Amazon and the Chocó draw coverage a company's backers cannot ignore. **But the government backs extraction**, and even landmark wins are enforced slowly. The through-line: **assert the rights of nature and of consultation; prove every violation and defect; use the courts, the closed ground, and the vote; reach the world — and expect a long fight measured in rights asserted, delay, exposure, and a company worn down as much as an outright stop.** And remember that Ecuadorian jurisprudence keeps opening ground: Los Cedros held nature's rights self-executing and nationwide, and later cases have extended similar protection to rivers and mangroves — so the legal tools available to a community today are broader than they were a few years ago, a trend that rewards the community willing to reach for them. The through-line: **assert the rights of nature and of consultation; prove every violation and defect; use the courts, the closed ground, and the vote; reach the world — and expect a long fight measured in rights asserted, delay, exposure, and a company worn down as much as an outright stop.**

STEP 1: TARGET IDENTIFICATION

Every effective campaign begins by finding the exact decision that governs the project — and its weakest point. Vague opposition to "the mine" goes nowhere; opposition to "the environmental licence granted without the environmental consultation Article 398 requires, for a project that threatens the rights of a protected cloud forest closed to mining" is a case. Answer five questions.

The Five Core Questions

1. **What exactly is proposed, and under what permit?** Name the project, the proponent, and the specific approval it needs or holds — the environmental *registro* or *licencia* and its conditions, the mining concession or oil block, the water authorisation. A project lives or dies by these instruments, and each has a defect waiting to be found.
2. **What stage is it at?** Concession granted? Environmental study under way? Licence granted? Under construction? Operating? The stage dictates the door. If the licence is not yet issued, your objection during the study is cheap and powerful. If it is operating, a breached condition or a rights-of-nature harm may hand you a protective action.
3. **Does it threaten the rights of nature or an Indigenous territory?** This is the pivotal, distinctive question. Identify the forest, river, páramo, mangrove, or species at risk — because nature's own rights can be asserted on its behalf. And identify whether the ground is an Indigenous, Afro-Ecuadorian or Montubio territory whose prior consultation is required. Either can be the strongest lever there is.
4. **Is the ground closed or specially protected?** Is it inside the national protected-areas system, a bosque protector, an intangible zone (like the Tagaeri-Taromenane zone in Yasuní), a páramo, or a watershed? Closed ground the project cannot lawfully occupy is a case that can win on the documents alone.
5. **Who decides, who benefits, and who is watching?** Which authority and which officials granted the permits (MAATE, the mining or oil regulator); who owns and funds the proponent and buys its output; which GAD's land use and

which community's consultation are engaged; and which press, allies, and international bodies can be reached. This maps your levers and your audiences at once. It is worth writing the answers down as a one-page brief: the project and its permit, the stage, the rights-and-consultation status, the closed-ground status, and the deciders, beneficiaries, and watchers. That page becomes the shared reference for your whole campaign — the thing a new volunteer, a lawyer, or a reporter reads first — and it keeps everyone aimed at the same decision and the same weak point, instead of scattering effort across grievances that do not move the outcome.

A Worked Example

Suppose a company proposes an open-pit mine on a forested mountain that feeds a community's water, partly overlapping a *bosque protector* and the ancestral territory of an Indigenous community, and it has obtained an environmental licence.

Working the five questions: the project needs an **environmental licence** (obtained — request it and its conditions), a **mining concession**, and, because it affects an Indigenous territory and the environment, **prior and environmental consultation** (were they genuinely done?). It is **operating or about to** — so a protective action and precautionary measures are the live route. The mountain and forest carry **rights of nature**, and the *bosque protector* may be **closed ground**. The **GAD's land-use and water powers** are engaged, and the community's water and the forest's biodiversity give a **media and international** hook.

Within an afternoon you have moved from "we oppose the mine" to a target list: request and scrutinise the licence and the study; establish whether prior and environmental consultation were genuinely done, and assert them if not; check the *bosque protector*, intangible-zone, and watershed status; file a protective action on the rights of nature and the community's rights, with precautionary measures; engage the GAD; and prepare the forest-and-water story for the press. That is a campaign, not a complaint.

STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

Documentation is the foundation everything else stands on. A judge, the Defensoría, a journalist, and a company's financiers all move on evidence, not indignation. Build your file in three layers.

Layer 1: The Official Record

Get the documents the decision rests on. Request the **environmental licence or registro and its conditions**; the **environmental-impact study** and its annexes; the **mining concession or oil contract**; the **consultation records** — the environmental consultation under Article 398 and any prior consultation; the **water authorisation**; and the minutes of any public process. Ecuador's transparency law (LOTAIP) and the constitutional right to petition make these obtainable, and the gap between what they promise and what is happening on the ground is where cases are won. The Los Cedros case rested on exactly such records — permits granted over a protected forest, with the environmental consultation the Constitution required not properly done. Read the impact study not only for what it says but for what it assumes: a study that treats a biodiverse cloud forest as ordinary woodland, that counts only the pit and ignores the roads, tailings, and water it will need, or that never mentions the endangered species everyone in the area can name, is a study with a hole in it — and that hole is your opening. The strongest cases are often built not on a dramatic new fact but on the quiet gap between the official paper and the living forest it claims to describe.

Layer 2: The Ground Truth

Document the reality the paper hides. Photograph and date the **actual footprint** — cleared forest, drill platforms, silted rivers, muddied water sources — and geotag it. Log **incidents**: an oil spill, a fish kill, a spring gone dry, sediment in the river. Capture **before-and-after** with your own photos and with freely available satellite imagery, which can show deforestation and encroachment over time. Record **testimony**: elders on the territory's history and use, farmers on the water and the crops, and, crucially in Ecuador, evidence of the **biodiversity and the species** at risk — the endangered animals and plants whose presence gives nature's rights their teeth. In Los Cedros, the documented presence of threatened species was central to the ruling.

Layer 3: The Defects and the Rights

Finally, document the failures of process and the rights at stake that turn harm into an unlawful act. Was the

environmental consultation (Article 398) or a required prior consultation skipped or faked? Does the footprint **overlap closed ground** — a protected area, an intangible zone, a *bosque protector*, a watershed? Does the project **threaten the existence or the ecological cycles of a forest, river, or species** — the rights of nature themselves? Was the **precautionary principle ignored** in the face of serious risk? Each defect is a separate ground — for an objection, a protective action, a referral, or a referendum — and together they make a case that is hard to wave away. This is the layer that most often decides Ecuadorian fights, because here a project that looked licensed is revealed to be violating the rights of nature, of consultation, or of a community that the Constitution places above the permit. As you work, keep a running list of the specific defects, because each is a separate lever: an **environmental or prior consultation skipped or faked; a footprint overlapping a protected area, an intangible zone, a bosque protector, or a watershed; a threat to the existence or cycles of a forest, river, or species** — the rights of nature themselves; a **precautionary principle ignored** in the face of serious risk; a **licence condition breached in practice**; and a **required permit never obtained**. A project rarely has just one of these, and it is the accumulation — a protected-forest overlap and a skipped consultation and a threatened species together — that made Los Cedros so hard to answer.

WHAT TO GATHER, AND WHERE TO FIND IT

This is the practical companion to Step 2: the specific records that decide Ecuadorian cases, and where to obtain them. You will not need every item; you will need the few that expose your project's particular defect.

The Permits and Their Paper Trail

- **The environmental licence or *registro ambiental***, with its conditions and obligations. Held by **MAATE**. The permit's conditions are frequently where a project is vulnerable — a licence operated in breach of a condition is an enforcement case, and one granted without proper consultation is a constitutional one.
- **The environmental-impact study** and its annexes, and the record of any public process. Also with MAATE, and increasingly on the SUIA environmental information system. Read it for what it omits or understates — the species at risk, the water, the protected-area overlap, the cumulative effect.
- **The mining concession or oil contract**, from the mining regulator or the hydrocarbons authority. Check the area and whether it overlaps closed ground.
- **The consultation records** — the environmental consultation under Article 398 and any Indigenous prior consultation. These reveal whether the community's rights were respected, and are where many Ecuadorian cases turn.
- **Local instruments** — the GAD's land-use (*ordenamiento territorial*) plan, water ordinances, and any local *consulta popular* result.
- **The water authorisation**, from the water authority — its absence or breach is a live ground.

How to Get Them

Most of these are public. Use the **right of petition** and the transparency law (**LOTAIP**): a written request naming the documents obliges a timely answer. Request at MAATE, the mining or oil regulator, the GAD, and the water authority; check the SUIA system for environmental files. When an authority stalls, a follow-up citing LOTAIP usually moves it; persistent refusal is itself a rights violation you can take to court. Move early: the environmental study and any consultation have real windows, and an objection or evidence entered while a window is open carries far more weight — and preserves far more of your rights — than the same point raised after a decision is made.

The Ground Evidence

- **Dated, geotagged photographs and video** of the footprint, the clearing, the discharge, the drying water source.
- **Satellite before-and-after** from freely available imagery, to show deforestation, encroachment into closed ground, or the true extent of operations.
- **Biodiversity evidence** — records, photographs, camera-trap images, and expert notes on the threatened species present. In a rights-of-nature case this is not optional colour; it is the heart of the claim, as it was in Los Cedros.
- **Maps** overlaying the project footprint on the Indigenous territory, the protected area or *bosque protector*, the intangible zone, and the watershed — a single map showing a mine inside a protected cloud forest is worth pages of argument. Community mapping is within reach with free imagery and open tools, or a partner university or NGO; a participatory map made with the community doubles as evidence of its territory and use.
- **Sworn statements** from elders, farmers, and community authorities, on use, history, consultation, and harm.
- **Independent technical readings** — a water sample, a biologist's or hydrologist's note. Community monitoring and university partners can supply these cheaply. Gather it early and gather it dated, because timing decides its weight: the environmental study and any consultation have real windows, and evidence entered while a window is open shapes

the decision, while the same evidence produced afterward only supports a challenge to a decision already made.

Organise It So It Persuades

Keep a **master timeline** of every permit date, consultation, incident, objection, and deadline — the spine of any action. Keep a **document index** so any fact can be sourced in seconds. And keep an **argument bank** (developed in a later section) that pairs each fact with what it proves, to whom. A well-ordered file is not bureaucracy; it is what lets a volunteer, a lawyer, a reporter, and a judge all see the same clear picture fast — and it guards against the campaign's own worst enemy, a claim that cannot be sourced when the other side challenges it. In a fight this long, the community with the better-kept file is very often the one that prevails, because it is the one whose every assertion — every date, every permit number, every species record — holds when tested, while the proponent's looser story frays. Treat the file as the campaign's memory: people burn out and move on, but a well-ordered archive lets whoever picks up the work carry it forward without starting over.

STEP 3: BUILDING LOCAL OPPOSITION — HOW TO ORGANISE COMMUNITIES THAT LAST

Evidence and law do not stop projects on their own. Organised people do — sustained, visible, and credible over the months or years a fight takes. This is the step communities most often get wrong, and both Ecuadorian landmarks rest on getting it right: Los Cedros through a municipality and a coalition of scientists and lawyers, Yasuní through a decade of patient, nationwide organising by Yasunidos.

Phase 1: The Core

Start with a small, committed core — five to fifteen people who will carry the work. Where an Indigenous territory is involved, include the **legitimate community authorities** — the *comuna*, the nationality's organisation — from the start, because their consultation and their voice are the campaign's legal and moral spine; a captured or bypassed authority is the proponent's favourite tool, and an authentic one is your strongest asset. Assign roles: documentation, legal liaison, media, community liaison, and coordination. Agree on the goal — refusal, a revoked licence, a redesign, a referendum — and on what you will and will not accept.

Phase 2: The Coalition

Widen deliberately. Map who shares the stake — farmers' and water-user associations, the parish councils, the church networks, teachers and health workers, students, and the diaspora. Reach the **allies with capacity**: public-interest lawyers and legal-aid groups, national environmental and Indigenous organisations (CONAIE and its regional affiliates carry real weight), scientists and academics who can document the biodiversity, and international networks. Los Cedros united a municipality, biologists, and constitutional lawyers; Yasuní united a national collective, Indigenous nationalities, and a broad public — each bringing something the others could not.

A worked coalition example. Facing a mine that threatens a forest and a water source, a farmers' association, an Indigenous *comuna*, the parish council, and a handful of teachers form a core; they bring in a legal-aid lawyer and a biologist from a nearby university to document the species; the GAD passes a resolution; a national environmental network amplifies the story. No single group could have carried it; together they cover documentation, law, science, faith, local legitimacy, and reach — the full spread a winning campaign needs. And in Ecuador one specialist matters more than almost anywhere: the **biologist or ecologist** who can name and document the species at risk. A rights-of-nature case rises or falls on that evidence, so a university partner or a conservation scientist is not a nice-to-have but a core member of the coalition — recruit one early, and give them the access and the time to build a proper record of what the forest holds.

Phase 3: Sustaining It

Campaigns die of burnout, not defeat. Meet on a rhythm. Give people concrete, finishable tasks. Mark small wins — a resolution passed, a document pried loose, a hearing attended in force. Rotate the exhausting roles. And protect people, because Ecuador can be dangerous for defenders: keep leadership collective and visible rather than resting the campaign on one exposed individual; document every threat, surveillance, or act of intimidation, which protects the person and becomes evidence for the Defensoría or a court; build outside links to national networks, the Church, and international allies; and report threats at once. A campaign that protects its people is a campaign that can last — and lasting, as

Yasuní's decade shows, is how these fights are won.

Phase 4: Showing Strength

Numbers and legitimacy must be seen. Turn people out for hearings and consultations. Gather signatures — the currency of a *consulta popular*, and Yasunidos gathered them for years. Hold peaceful, well-documented actions — marches, forest walks, water forums. The point is not spectacle; it is to demonstrate, to officials, to judges, and to the press, that the opposition is broad, rooted, and not going away. Throughout, guard the authenticity of your leadership and your consultation, because it is exactly what a proponent will try to fake: insist that Indigenous communities speak through their legitimate authorities and their own decision-making, and put that legitimacy on the record. A campaign whose leadership is unmistakably the community's own — its *comuna*, its nationality's organisation, its assembly — is one that neither a company nor an authority can quietly substitute with a more agreeable stand-in of its choosing; and that authenticity, documented from the start, becomes decisive when the consultation records are later examined.

STEP 4: LEGAL CHALLENGES — THE RIGHTS OF NATURE, THE PROTECTIVE ACTION, AND THE VOTE

Ecuadorian law gives communities an arsenal found almost nowhere else, and you do not need a final ruling to win with it: a filing freezes a project, forces disclosure, and creates leverage and headlines. Engage a lawyer or a legal-aid group early — but understand the tools yourself.

The Rights of Nature

Ecuador's signature lever is the **rights of nature** (Articles 71–74). Nature — a forest, a river, a páramo, a species — has the right to exist and to maintain its cycles, and **anyone may go to court to defend those rights**, on nature's behalf, without needing to show a personal injury. Article 73 obliges the State to apply precautionary and restrictive measures against activities that could drive species to extinction or destroy ecosystems. Los Cedros established that these rights are **self-executing and apply throughout the country**, protected areas or not, and that where an activity risks serious or irreversible harm, the burden falls on the State and the developer to prove it will not. This is your most distinctive and powerful ground.

The Acción de Protección and Precautionary Measures

The vehicle is the **acción de protección** (Article 88) — a fast constitutional action, filed before any judge, to protect a violated right, including the rights of nature and the community's rights to consultation, water, and a healthy environment. It can order the activity suspended and the permits reviewed. Paired with **precautionary measures** (Article 87), it can **freeze a project immediately**, before the merits are decided, so irreversible damage is not done while the case runs. A case that fails below can be taken further, and the **Constitutional Court** may select it for review and turn it into binding, nationwide precedent — which is exactly how Los Cedros was made. A protective action is meant to be swift: the judge sets a hearing within days, and may grant the precautionary measures at once, before deciding the merits, so that a forest is not felled while the case runs. The judge can order the authority or the company to cease, to restore, and to submit to monitoring, and can reverse a permit. Because the remedy is constitutional, a general denial is not enough for the respondents — they must engage the specific rights alleged. This is why the filing alone can halt work, compel disclosure, and put the proponent and the ministry on the defensive long before any final word.

Consultation — Environmental and Prior

Two consultation rights are levers in their own right. **Environmental consultation (Article 398)** requires the State to consult the community on decisions that may affect the environment. **Prior consultation** for Indigenous peoples (Article 57(7)), strengthened by the Inter-American Court's judgment in **Sarayaku v. Ecuador (2012)**, requires a genuine, good-faith, informed process before a project proceeds on their territory. Be clear-eyed: the Constitution frames these as consultation, not a veto, and they have too often been treated as a formality — but a consultation skipped or faked is a defect the courts have acted on, and Sarayaku set a binding standard the State must meet.

The Popular Consultation

The most demanding and most decisive tool is the **popular consultation (consulta popular)** — a binding referendum, national or local, on whether a project or an activity may proceed. It is what stopped oil in Yasuní and mining in the Chocó

Andino. It requires organising: gathering the signatures, winning the Constitutional Court's approval of the question, and running a campaign. It is a years-long undertaking, not a quick move — but where the political will and the public are with you, nothing else carries the same finality. Plan it with counsel and a broad coalition, and treat it as the culmination of a campaign, not its opening. The mechanics reward preparation: a local consultation, called by a GAD or by citizens' signatures, decides a question within that jurisdiction's competence; a national one, as with Yasuní, reaches the whole country but demands a national coalition and years of persistence. In both, the Constitutional Court must first approve the wording of the question, so the drafting matters as much as the campaign — a question framed too broadly or outside the proper competence can be struck before a single vote is cast. Get that drafting right, with counsel, before you spend a year gathering signatures behind it.

Where to File and With Whom

Environmental and constitutional cases run before ordinary judges (for protective actions) and up to the **Constitutional Court**. Get counsel early: the public-interest law groups and environmental-law networks that carried Los Cedros and Sarayaku, university legal clinics, and Indigenous peoples' legal teams have the experience and can advise on standing, the right action, and the safety risks before you file. A lawyer contacted while objections are still live and evidence is fresh — above all the biodiversity evidence a rights-of-nature case needs — is worth far more than one contacted after the machinery arrives.

Standing: Who May Sue for Nature

One reason these tools are so powerful is that Ecuadorian law is generous about who may use them. Because nature is a subject of rights, **any person, community, or people may go to court to defend those rights** — you do not have to prove a private injury; it is enough that a forest, a river, or a species is threatened. The municipality of Cotacachi brought Los Cedros on behalf of a forest, not on behalf of a landowner. This breadth is a gift: it means a rights-of-nature claim does not depend on owning the land or living beside it, only on the harm to nature and your willingness to speak for it. And where an Indigenous people's territory is at stake, the **Sarayaku** standard obliges the State to a prior consultation that is genuine, informed, culturally appropriate, and conducted in good faith and in advance — not a box-ticking exercise held after the decision is made. Cite it: it is binding on Ecuador, and it raises the bar every consultation must clear.

TURNING YOUR EVIDENCE INTO ARGUMENTS

You have a file of evidence. Now you must turn it into arguments — because the same fact persuades a judge, the Defensoría, a journalist, an international conservation group, an investor, and the community itself in different ways. Learning to translate your evidence for each audience is what lets a community reach every lever at once.

One Fact, Many Arguments

Take a single documented fact — say, that a mining licence was granted over a protected cloud forest that shelters an endangered species, on Indigenous territory, without the environmental consultation the Constitution requires. That one fact becomes:

- **A rights-of-nature argument:** the project threatens the existence and the ecological cycles of the forest and its species — a violation of Articles 71–73, and grounds for a protective action and precautionary measures.
- **A consultation argument:** the community's environmental and prior consultation rights were denied — the process was unlawful.
- **A rights-and-dignity argument:** a people and a sacred forest were bypassed and put at risk, in violation of the Constitution's promise of buen vivir.
- **An international argument:** a mining company destroying a globally significant cloud forest, on Indigenous land, without consultation — a story that reaches global media, conservation groups, and the company's financiers and buyers.
- **A financier-and-buyer argument:** a company that violates the host country's constitution and mines a protected forest is a legal, reputational, and supply-chain risk to those who fund and buy from it.

Same fact, five arguments, five audiences. Go through your strongest facts and, for each, ask what it proves to each audience. That table is your campaign's argument bank — and in Ecuador the rights-of-nature argument, tied to a treasured forest and its species, is often the one that moves both the courts and the world. Keep the arguments anchored to the same documented facts, so a claim made to a reporter can be backed in a sworn statement and a claim made to the court can be spoken plainly to the community; consistency across audiences is itself persuasive. When the legal filing, the press statement, the referral, and the community's own account all rest on the identical, verifiable record, the

proponent's contrary story starts to look like the invention it is — and a judge, a journalist, and a financier, comparing your account with the company's, will notice which one the documents and the biology support.

Match the Argument to the Audience

The courts and the Defensoría want the breach framed precisely against the specific right — Articles 71–73 on nature, Article 398 on consultation, the licence's conditions — with the documents and the biodiversity evidence that prove it, and the timeline that dates it.

Local officials (the GAD) respond to their own community's clear voice and to legal and political risk — the resolution, the land-use argument, the liability of backing an unlawful project.

Journalists need a specific, verified, human — and, in Ecuador, often a natural — story with a hook: a named forest, a threatened species, a documented violation, an imminent decision.

International allies, financiers, and buyers respond to reputational and legal exposure — an illegal operation in a globally significant ecosystem, tied to a named company they are connected to.

The community itself needs to see that the fight is winnable and shared — the small wins, the allies gained, the pressure mounting — so it lasts.

STEP 5: MEDIA STRATEGY — HOW PRESS COVERAGE SHIFTS OUTCOMES

Media is not vanity; it is a lever. Coverage raises the political cost of approval, reaches officials and financiers your letters cannot, protects defenders by making them visible, and can turn a local fight into a national or international cause. In Ecuador, with its combative press and its globally treasured ecosystems, this lever is unusually strong.

Build the Story

Reporters need specifics: a named place and people (and often a species), a dated and documented violation, a clear stake, and a live decision or deadline. "A mine threatens our forest" is not a story; "a mining company holds a licence to open a pit in a protected cloud forest that shelters an endangered monkey and feeds a community's water, on Indigenous land, without consultation, and a court will rule next month" is. Lead with your strongest verified fact, attach the map and the imagery, and offer a human voice — an elder, a mother, a community authority — and an expert biologist.

Reach the Right Outlets

Work outward in rings. **Local and regional press** first, where the story is felt and officials read it. Then **national outlets** — the newspapers, broadcasters, and the strong Ecuadorian online and investigative press — which carry political weight. Then, for a project touching a globally significant place or a listed or foreign company, **international media and specialist environmental outlets**, which reach financiers and buyers. Feed each ring what it needs, and let coverage in one pull in the next. Pay particular attention to the ring that reaches the **money**: a listed proponent depends on shareholders, lenders, and buyers, and coverage in international and financial outlets — and briefings to responsible-investment bodies — can reach a company where domestic politics cannot, turning its own backers into a source of pressure on it. Coverage does a second job that matters as much in Ecuador: it protects people. A community leader whose name and face are known to the national press, whose fight is followed abroad, and whose threats have been reported is harder to silence quietly than one who works in obscurity. Visibility, deployed carefully, is not only a lever against the project; it is a shield for the people carrying the fight.

Sustain It, Make It Safe and True

A single article changes little; a drumbeat changes decisions. Plan a sequence — the filing, the hearing, the new document, the community action, the referendum campaign — so there is always a next hook, and build your own record (a simple page, a social feed, a growing album of dated photographs and video) so the story exists in a form journalists can pick up and that survives if posts are removed. Keep messaging disciplined, accurate, and consistent; one exaggeration handed to the other side can cost you credibility you cannot rebuild. And in a country where defenders can be at risk, weigh how and whom you expose: centre the collective and the documented facts rather than isolated individuals, coordinate with your legal and community leads, and never publish what you cannot stand behind. Verified,

specific, human, and relentless — that is the coverage that shifts outcomes.

EMAILS & LETTERS

Written communications are how you enter objections, create a record, and reach the bodies that can act. Each does double duty: it asks for something and it documents that you asked. Keep copies of everything, and send important items so that receipt is provable. Below are adaptable templates for the situations you will meet most often. Keep them factual, specific, and grounded in the law and the evidence.

8A. Objection During the Environmental-Licensing Process

To: the Ministry of Environment, Water and Ecological Transition (MAATE) **Subject:** Objection — [project], environmental licence [file no.]

As a person affected by [project] at [location], I object during the environmental-licensing process. My grounds, with evidence: (1) the environmental-impact study [omits / understates] [effect — e.g. the threat to an endangered species and to the forest's ecological cycles]; (2) the environmental consultation required by Article 398 was not genuinely carried out; (3) [the project overlaps a protected forest / an intangible zone / Indigenous territory]. I request that the licence be DENIED, or that [strict conditions and genuine consultation] be required, and that this objection be entered on the record. [Attachments.]

8B. Request for Information (Right of Petition / LOTAIP)

To: [MAATE / the mining or oil regulator / the GAD / the water authority] **Subject:** Request for public information — [project]

Under the right of petition and the Organic Law on Transparency and Access to Public Information (LOTAIP), I request copies of: the environmental licence or registro and its conditions and obligations; the environmental-impact study and the record of public participation; [the mining concession / oil contract]; [the environmental and prior consultation records]; [the water authorisation and the GAD land-use plan provisions]. As a member of an affected community, I ask that these be provided within the legal term.

8C. Statement Asserting the Rights of Nature and to Consultation

To: MAATE [and the company / the relevant authority] **Subject:** [Project] — rights of nature and consultation, [forest / territory]

[Project] threatens the existence and ecological cycles of [the forest / river / species] and proceeds on the territory of [Indigenous community], through its legitimate authorities. Under Articles 71-74 of the Constitution, nature holds the right to exist and to maintain its cycles; under Articles 398 and 57(7) and the Inter-American Court's Sarayaku judgment, our environmental and prior consultation is required. These rights have been violated. We require that all activity cease until they are respected, and reserve the right to bring an acción de protección with precautionary measures. [Signed by the legitimate authorities / affected residents.]

8D. Acción de Protección with Precautionary Measures (via counsel)

To: the competent judge, via counsel **Subject:** Acción de protección and precautionary measures — [project]

As [affected residents / an Indigenous community / any person acting for the rights of nature], we bring an acción de protección (Art. 88) with precautionary measures (Art. 87) against [the authority and the company], on the grounds that [the project violates the rights of nature under Arts. 71-73 by threatening a protected forest and its species / the environmental and prior consultation rights were denied / the precautionary principle was ignored]. We seek [the immediate suspension of the activity, the review and revocation of the licence, and measures to prevent and repair the harm]. [Grounds, timeline, biodiversity evidence, and maps attached.]

8E. Referral to the Defensoría / Contraloría / Fiscalía

To: the Defensoría del Pueblo [or the Contraloría / the Fiscalía] **Subject:** Referral — [rights violation / harm / irregularity], [project], [location]

We bring to your attention [the failures and the harm] connected with [project]: [sourced facts — a licence granted over unaddressed objections, a consultation skipped, a protected-forest overlap, officials who acted or failed to act, threats against community members]. We request that you [investigate and defend the affected rights / protect the threatened community / audit the public funds involved / open a criminal inquiry into the environmental damage], and we attach the documentation.

8F. Letter to the GAD (Municipality / Province)

To: [the Mayor / the Prefect / the GAD council] **Subject:** [Land use / a resolution / a hearing] — [project]

We are residents of [place] writing about [project]. Our concern, briefly: [one or two specific grounds — a threat to our water and forest, an overlap with closed ground, a consultation skipped]. Within your competence over land use, water, and territorial ordering, we ask you to [regulate the land use accordingly / pass a resolution of opposition / support a consulta popular / address the national authorities]. [If true:] [#] residents, [#] communities and organisations share this concern, and the matter carries constitutional risk. We welcome a meeting and can share our full evidence.

8G. Coalition Outreach (to a legal-aid group or national/international ally)

To: [a public-interest law group / a national environmental or Indigenous network / an international conservation organisation] **Subject:** [Project] — would you support our community's case?

We are a community group [and Indigenous community] in [place] facing [project], which [one-line stake — e.g. "would mine a protected cloud forest that shelters endangered species and gives us our water, on our territory, without consultation"]. We are getting in touch because [your organisation has carried rights-of-nature or consultation cases here / your reach can carry this story to those who fund and buy from the company]. We are not asking you to adopt our whole campaign — only to consider [taking or advising on a case / documenting the biodiversity / amplifying our fight]. We have documented evidence and community backing, and can send a brief and arrange a call.

8H. Email to a Reporter (National or International)

To: [journalist] **Subject:** Story tip: [specific finding] — [the forest / the community]

I follow your coverage of [beat]. We have something your readers should know, with a clear news hook: [documents] show [quantified finding — e.g. "a mining company holds a licence to open a pit in a protected cloud forest that shelters an endangered species and feeds our water, on Indigenous land, without the consultation the Constitution requires"], and [a decision / hearing] is due [date]. It is specific, verified, and it concerns a place of national and global significance. I can share the full file and connect you with affected community members and [a biologist]. Could we talk this week?

Using the Templates Well

Send important communications so that receipt is provable, and log every one in your timeline — above all the licence dates, the consultation records, and any court or comment deadlines. Keep them factual, specific, and grounded in the law and the evidence; attach your documentation and your biodiversity evidence; and route them, where you can, through or with the legitimate community authorities, your legal-aid partner, and your allies. The reply — or the silence — becomes part of your record, and in Ecuador that record feeds the levers that matter most: the rights of nature, consultation, the closed ground, the courts, and the spotlight.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can run a long campaign. With an afternoon a week you can still do real damage to a bad project. In rough order of impact for the effort:

1. Establish what nature and what consultation are at stake — today. Identify the forest, river, or species the project threatens (the basis of a rights-of-nature claim) and whether an Indigenous territory and its prior consultation are involved. If consultation was skipped or the harm to nature is clear, you may hold the strongest lever there is.

2. Assert the rights of nature and consultation, in writing. One clear statement (8C) that the project violates Articles 71–73 and the consultation rights puts its legality in doubt and creates a powerful record — and sets up the protective action.

3. Check whether the ground is closed. Establish whether the footprint sits in a protected area, a *bosque protector*, an intangible zone, or a watershed. A project on closed ground is defective on the documents, and a single overlay map can prove it.

4. Request the licence and the file. One petition (8B) forces out the environmental licence, the study, and the conditions — often revealing the missing consultation, the breached condition, or the protected-forest overlap that becomes your case.

5. File an acción de protección with precautionary measures. The protective action (8D) is fast and, with precautionary measures, can suspend the activity within days where the rights of nature or consultation are being violated. Reach a legal-aid group first if you can.

6. Tell the world. A threat to a cloud forest, an Amazon reserve, or an endangered species reaches the national and international press; a single accurate tip (8H) can turn a local fight into a cause and reach the company's financiers and buyers.

7. Refer it to the Defensoría. A referral (8E) brings scrutiny — and, if defenders are threatened, protection — without the cost of a full case.

Do only the first three and you will have cast doubt on the project's legality, asserted nature's rights and your own, and shown the ground is closed — the exact combination that has most tested Ecuadorian projects. Then come back and read the rest. And do not underestimate how far these three cheap moves reach: a written assertion of the rights of nature, an overlay map showing the project on closed ground, and a petition that forces out the file have, between them, started more than one case that ended at the Constitutional Court. The distance from an afternoon's work to a landmark ruling is shorter here than almost anywhere.

WHEN THE SYSTEM IS TILTED

Ecuador's system is tilted in specific ways you must understand, so you neither waste effort nor miss the levers that still work.

Where the Tilt Shows

The tilt runs toward oil and mining, on which the national budget leans, and which successive governments have promoted — even against referendum results. The **environmental authority** has granted and defended licences over community objections. **Consultation is framed as consultation, not consent**, and prior and environmental consultation have too often been treated as a formality to be checked off. Even **landmark wins are enforced slowly**: after the Yasuní vote the government said it needed far longer than the one year ordered to dismantle the ITT operations, and rights-of-nature rulings can meet foot-dragging in the field. And Ecuador can be **dangerous for defenders**, especially in the Amazon and mining zones. Where this tilt bites, the formal process gives less than it should — but real levers still reach past it.

What Still Works — And Some Is Distinctive

The decisive point is that even where the system tilts, real and distinctive levers reach past it.

The rights of nature are genuine and court-enforced. A forest or river's right to exist is a constitutional guarantee the Court has upheld against the government and companies alike, self-executing and nationwide. This is your firmest and most distinctive ground, and no minister can erase it.

Closed ground stays closed. Protected areas, *bosques protectores*, and intangible zones bar extraction regardless of the proponent's connections — and an overlap is provable on a map.

The protective action reaches the Constitutional Court. The acción de protección puts a community before a judge fast, precautionary measures can freeze the work, and the Constitutional Court can turn a single case into binding, nationwide law — as Los Cedros shows. And a filing does not have to end in a final victory to work: even where enforcement later lags, the protective action, the precautionary measures, and the disclosure they force buy time, expose the record, and shift the political and reputational calculus — which is often what turns a determined proponent, or a wavering financier, away.

The ballot can override the government. The popular consultation stopped oil and mining the government wanted; it is demanding, but it is the ultimate lever, and it belongs to the people, not the ministry.

The press and the world cannot be switched off. A combative domestic media and intense international interest in

the Amazon, the Chocó, and the Galápagos reach past domestic politics to the company's financiers and buyers.

The Honest Frame

So the honest frame for Ecuador is real but demanding. The rights of nature, the protective action, prior and environmental consultation, protected ground, the popular consultation, a free press, and the international spotlight give a community genuine — in places unique — power, as Los Cedros and Yasuní proved. But the government backs extraction, consultation is not consent, enforcement of even famous wins lags, and defenders face real danger. So diagnose the tilt honestly: lean on nature's rights, the closed ground, and the courts, not on a friendly ministry; document the biodiversity and every violation; protect your people and report threats at once; weigh the long road of a referendum realistically; and think in terms of rights asserted, delay, exposure, and a proponent worn down as much as an outright, permanent stop. In a government-backed fight, that is often what winning looks like — and it is real.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Sometimes a project advances not despite the evidence but because someone is being paid, pressured, or protected. Corruption changes your strategy: you stop trying to persuade a captured decision-maker and start exposing and going around them.

How to Tell

Look for the signatures of capture. A **consultation that produces agreement against the community's evident will** — run with outsiders, signed by a few, dissenters excluded, sudden payments — is a classic red flag. A **licence granted or an obligation waived in the teeth of the evidence**, over strong documented objections and without addressing them, suggests more than error. **Officials with undisclosed interests** in the proponent, **permits issued at unusual speed**, **studies that ignore the species and the water everyone can see**, and **enforcement that never comes** despite obvious violations all point the same way. And **threats or intimidation aimed at the leaders asking questions** are themselves a signature of something rotten. One anomaly may be incompetence; a pattern is capture. Corruption tends to leave its fingerprints in the sequence of events rather than in any single document: lay your timeline beside the official one and watch for approvals that cluster around a change of official, an inspection that a complaint should have triggered but never happened, or a study whose damning early draft is quietly softened in its final version. Gather these threads before you act, because a captured actor who senses exposure will move to bury the record.

Who Can Be Captured — and Who Is Harder

Be clear-eyed about where capture reaches. A **local office, a hand-picked consultation, or a single official** can be bought or pressured. But the Ecuadorian system has bodies harder to capture and that a corrupt local arrangement cannot easily reach: the **Constitutional Court**, guardian of the rights of nature; the **Defensoría**, which defends rights and defenders; the **Contraloría**, which follows the public money; the **Fiscalía**, which can prosecute environmental crime; the **Inter-American** human-rights system, which found against the State in Sarayaku; and the **free press**. Corruption thrives on darkness and on staying local; your task is to lift the matter out of the captured node and into the light and the higher, cleaner fora.

What to Do

Do not confront and tip off the captured official. Instead, **document the anomaly precisely** — the dates, the signatures, the payments, the missing inspections — and refer it, with evidence, to the bodies above (8E): the Contraloría for the money, the Fiscalía for the crime, the Defensoría for the rights and the threatened, and the press for the daylight. Pair the referral with the rights-of-nature and consultation case, so the corruption and the harm are exposed together. Remember that exposure has its own momentum: a Contraloría finding or a Fiscalía inquiry creates a record other bodies must reckon with, and a consultation shown to be captured collapses the legal ground the approval stood on. You are not asking a captured node to change its mind; you are removing the pieces the project depends on, one clean forum at a time, and letting the daylight do the rest. And in Ecuador the rights of nature give you a forum a corrupt local arrangement cannot reach: a claim brought on the forest's own behalf does not depend on the captured official's goodwill. And protect yourself above all — in Ecuador, exposing corruption can be dangerous, so coordinate with your legal and community leads, involve the Defensoría, keep the work collective and documented, and never carry it alone.

INTEGRATION & TIMELINE

The five steps win when they run together. Here is how they fit across the life of a fight.

Early (Weeks 0-8): Identify, Document, and Assert

Pin down the project, the permit, and the stage (Step 1). Begin the file — request the licence, the study, the consultation records — and start documenting the biodiversity and the threat (Step 2 and What to Gather). Form the core and bring in the legitimate community authorities (Step 3). And move fast on what will not wait: **assert the rights of nature and consultation** in writing, and **file objections while the study is open**. Reach a legal-aid group now, before deadlines close. This early phase is cheap, and it sets up everything else.

Middle (Months 2-12): Escalate on Every Front

Widen the coalition and show strength (Step 3). Turn your evidence into arguments for each audience (Turning Evidence). Escalate legally as the facts warrant — an acción de protección with precautionary measures, a rights-of-nature claim, a demand for lawful consultation (Step 4). Refer the officials and the money to the Contraloría and the Fiscalía, and any threats to the Defensoría (8E). Build the media drumbeat from local to national to international (Step 5). Each front feeds the others: a filing is a headline, a headline is pressure, pressure moves an official, an official's document strengthens the filing. Do the cheap, time-sensitive things first, because a missed comment period or a lost deadline cannot be recovered. A campaign that front-loads the irreversible steps and runs the rest in parallel gets far more from the same effort than one that takes them one at a time; and it keeps the media and the coalition growing throughout, so that when a legal or official decision comes — or a referendum is called — there is a watching public to give it weight.

Later (Months 6-48+): Sustain, Consider the Vote, and Redefine the Win

Sustain the coalition against burnout; protect your people; keep the record and the coverage alive. Where the political will and the public are with you, weigh the long road of a **popular consultation** — the tool that gave Yasuní its victory. And judge success honestly. Sometimes it is an outright, permanent stop — a licence revoked, a project abandoned, a ban won at the ballot. More often, in a government-backed fight, it is a project **stalled for years, shrunk, re-sited, saddled with conditions, or so delayed and exposed that the proponent walks away** — and nature's rights vindicated and a precedent that protects the next community. That is not a lesser victory. It is what winning usually looks like, and it is worth every effort it takes.

The Shape of a Campaign

WEEKS 0-8	Identify Document biodiversity Assert rights Object Get counsel
MONTHS 2-12	Coalition Arguments Protective action + precautionary measures Referrals Media
MONTHS 6-48+	Sustain Protect people Weigh a referendum Redefine and secure the win

FINAL ASSESSMENT

Ecuador gives communities a genuinely powerful — and, in places, unique — set of tools, and the honest measure of this guide is how squarely it faces both their strength and their limits.

The strengths are real and distinctive. A community can defend **nature's own constitutional rights** — the right of a forest, a river, a species to exist — self-executing and nationwide, the ground on which Los Cedros was won. It can reach a judge fast through the **acción de protección** and freeze a project with **precautionary measures**, with a **Constitutional Court** that turns single cases into binding law. It holds **prior and environmental consultation** rights, strengthened at the Inter-American Court. It stands on **closed ground** — protected areas and intangible zones. It can take a project to **the ballot** and win, as Yasuní and the Chocó Andino did. And it can summon **a combative press and an international spotlight** on the Amazon, the Chocó, and the Galápagos, reaching the financiers and buyers a company depends on.

The limits are just as real. The government backs oil and mining, consultation is not consent, even landmark rulings and referendum results are enforced slowly, and — soberingly — Ecuador can be dangerous for those who defend land and water. No guide should pretend otherwise. The delays over Yasuní and the pressures on Amazon defenders are the condition of this fight, not its exception.

So the realistic promise is this: **organise early, assert the rights of nature and of consultation, document the biodiversity and every defect, use the protective action and the closed ground, reach the courts, the ballot, and the world — and run all of it together, protecting your people above all.** Do that, and even against a government-backed project you can force delay, exposure, conditions, rights vindicated, and a proponent worn down — and sometimes an outright stop. Do it as Los Cedros and Yasuní did, over months and years and across communities, with the legitimate authorities at the centre and public-interest lawyers and scientists at your side, and you can win a landmark that protects not only your own forest and water but the next community's too.

A last word on endurance. These fights are won in years, not weeks, and the proponent is counting on your exhaustion. Its advantage is money and patience; yours is legitimacy, numbers, the rights of nature on your side, and the fact that you are defending your home while it is merely pursuing a return. Play to that. Keep the file, keep the coalition, keep the record and the coverage alive, protect your people, and treat every delay, every disclosure, every referral, and every headline as a brick in a wall that grows too high and too costly for the project to climb.

The tools are here — some of them found nowhere else on earth. The Constitution and the courts are on your side more than you may think. Above all, remember what the Constitution says plainly and the Court has made real: nature holds rights the State must guarantee, and your participation and consultation are not favours granted but rights owed. A project that trampled them is already on weak ground, whatever its permits say. What decides the outcome is method, endurance, and courage — and those you supply. What decides the outcome is method, endurance, and courage — and those you supply. Begin today, begin cheaply, and build from there. Communities before you have stopped what looked unstoppable. So can yours.